

Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
ISABELA THIRD
DISTRICT ENGINEERING OFFICE
REGIONAL OFFICE II
Tagaran, Cauayan City, Isabela

BIDDING DOCUMENTS
FOR

CONTRACT ID: **24BG0272**

CONTRACT NAME:

**ORGANIZATIONAL OUTCOME 2: Protect
Lives and Properties Against Major Floods- Flood
Management Program- Construction/ Rehabilitation
of Flood Mitigation Facilities within Major River
Basins and Principal Rivers- Construction of Flood
Control Project at Macaña Creek, Phase I, Barangay
Luzon, Cabatuan, Isabela**

CONTRACT LOCATION:

Barangay Luzon, Cabatuan, Isabela

Date of Submission of Technical
and Financial Proposal :

January 30, 2025

Issuance of Bidding Documents :

**January 08, 2025 - January
30, 2025**

**Sixth Edition
July 2020**

Preface

These Philippine Bidding Documents (PBDs) for the procurement of Infrastructure Projects (hereinafter referred to also as the “Works”) through Competitive Bidding have been prepared by the Government of the Philippines for use by all branches, agencies, departments, bureaus, offices, or instrumentalities of the government, including government-owned and/or -controlled corporations, government financial institutions, state universities and colleges, local government units, and autonomous regional government. The procedures and practices presented in this document have been developed through broad experience, and are for mandatory use in projects that are financed in whole or in part by the Government of the Philippines or any foreign government/foreign or international financing institution in accordance with the provisions of the 2016 revised Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 9184.

The PBDs are intended as a model for admeasurements (unit prices or unit rates in a bill of quantities) types of contract, which are the most common in Works contracting.

The Bidding Documents shall clearly and adequately define, among others: (i) the objectives, scope, and expected outputs and/or results of the proposed contract; (ii) the eligibility requirements of Bidders; (iii) the expected contract duration; and (iv) the obligations, duties, and/or functions of the winning Bidder.

Care should be taken to check the relevance of the provisions of the PBDs against the requirements of the specific Works to be procured. If duplication of a subject is inevitable in other sections of the document prepared by the Procuring Entity, care must be exercised to avoid contradictions between clauses dealing with the same matter.

Moreover, each section is prepared with notes intended only as information for the Procuring Entity or the person drafting the Bidding Documents. They shall not be included in the final documents. The following general directions should be observed when using the documents:

- a. All the documents listed in the Table of Contents are normally required for the procurement of Infrastructure Projects. However, they should be adapted as necessary to the circumstances of the particular Project.
- b. Specific details, such as the “*name of the Procuring Entity*” and “*address for bid submission*,” should be furnished in the Instructions to Bidders, Bid Data Sheet, and Special Conditions of Contract. The final documents should contain neither blank spaces nor options.
- c. This Preface and the footnotes or notes in italics included in the Invitation to Bid, BDS, General Conditions of Contract, Special Conditions of Contract, Specifications, Drawings, and Bill of Quantities are not part of the text of the final document, although they contain instructions that the Procuring Entity should strictly follow.
- d. The cover should be modified as required to identify the Bidding Documents as to the names of the Project, Contract, and Procuring Entity, in addition to date of issue.

- e. Modifications for specific Procurement Project details should be provided in the Special Conditions of Contract as amendments to the Conditions of Contract. For easy completion, whenever reference has to be made to specific clauses in the Bid Data Sheet or Special Conditions of Contract, these terms shall be printed in bold typeface on Sections I (Instructions to Bidders) and III (General Conditions of Contract), respectively.
- f. For guidelines on the use of Bidding Forms and the procurement of Foreign-Assisted Projects, these will be covered by a separate issuance of the Government Procurement Policy Board.

TABLE OF CONTENTS

Contents

GLOSSARY OF.....	5
TERMS, ABBREVIATIONS, AND ACRONYMS	5
SECTION I. INVITATION TO BID.....	8
SECTION II. INSTRUCTIONS TO BIDDERS	12
1. Scope of Bid.....	13
2. Funding Information	13
3. Bidding Requirements.....	13
4. Corrupt, Fraudulent, Collusive, Coercive, and Obstructive Practices	14
5. Eligible Bidders.....	14
6. Origin of Associated Goods	14
7. Subcontracts	14
8. Pre-Bid Conference	14
9. Clarification and Amendment of Bidding Documents.....	15
10. Documents Comprising the Bid: Eligibility and Technical Components	15
11. Documents Comprising the Bid: Financial Component	15
12. Alternative Bids	16
13. Bid Prices	16
14. Bid and Payment Currencies.....	16
15. Bid Security.....	16
16. Sealing and Marking of Bids.....	17
17. Deadline for Submission of Bids	17
18. Opening and Preliminary Examination of Bids	17
19. Detailed Evaluation and Comparison of Bids.....	17
20. Post Qualification.....	18
21. Signing of the Contract	18
SECTION III. BID DATA SHEET	19
SECTION IV. GENERAL CONDITIONS OF CONTRACT	36
1. Scope of Contract.....	37
2. Sectional Completion of Works	37
3. Possession of Site	37

4.	The Contractor's Obligations	37
5.	Performance Security	37
6.	Site Investigation Reports	38
7.	Warranty.....	38
8.	Liability of the Contractor.....	38
9.	Termination for Other Causes	38
10.	Dayworks	38
11.	Program of Work.....	39
12.	Instructions, Inspections and Audits	39
13.	Advance Payment.....	39
14.	Progress Payments	39
15.	Operating and Maintenance Manuals.....	39
SECTION V. SPECIAL CONDITIONS OF CONTRACT		41
SECTION VI. SPECIFICATIONS.....		43
SECTION VII. DRAWINGS		45
SECTION VIII. BILL OF QUANTITIES		46
SECTION IX. CHECKLIST OF TECHNICAL AND FINANCIAL DOCUMENTS		48

Glossary of Terms, Abbreviations, and Acronyms

ABC – Approved Budget for the Contract.

ARCC – Allowable Range of Contract Cost.

BAC – Bids and Awards Committee.

Bid – A signed offer or proposal to undertake a contract submitted by a bidder in response to and in consonance with the requirements of the bidding documents. Also referred to as *Proposal* and *Tender*. (2016 revised IRR, Section 5[c])

Bidder – Refers to a contractor, manufacturer, supplier, distributor and/or consultant who submits a bid in response to the requirements of the Bidding Documents. (2016 revised IRR, Section 5[d])

Bidding Documents – The documents issued by the Procuring Entity as the bases for bids, furnishing all information necessary for a prospective bidder to prepare a bid for the Goods, Infrastructure Projects, and/or Consulting Services required by the Procuring Entity. (2016 revised IRR, Section 5[e])

BIR – Bureau of Internal Revenue.

BSP – Bangko Sentral ng Pilipinas.

CDA – Cooperative Development Authority.

Consulting Services – Refer to services for Infrastructure Projects and other types of projects or activities of the GOP requiring adequate external technical and professional expertise that are beyond the capability and/or capacity of the GOP to undertake such as, but not limited to: (i) advisory and review services; (ii) pre-investment or feasibility studies; (iii) design; (iv) construction supervision; (v) management and related services; and (vi) other technical services or special studies. (2016 revised IRR, Section 5[i])

Contract – Refers to the agreement entered into between the Procuring Entity and the Supplier or Manufacturer or Distributor or Service Provider for procurement of Goods and Services; Contractor for Procurement of Infrastructure Projects; or Consultant or Consulting Firm for Procurement of Consulting Services; as the case may be, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

Contractor – is a natural or juridical entity whose proposal was accepted by the Procuring Entity and to whom the Contract to execute the Work was awarded. Contractor as used in these Bidding Documents may likewise refer to a supplier, distributor, manufacturer, or consultant.

CPI – Consumer Price Index.

DOLE – Department of Labor and Employment.

DTI – Department of Trade and Industry.

Foreign-funded Procurement or Foreign-Assisted Project – Refers to procurement whose funding source is from a foreign government, foreign or international financing institution as specified in the Treaty or International or Executive Agreement. (2016 revised IRR, Section 5[b]).

GFI – Government Financial Institution.

GOCC – Government-owned and/or –controlled corporation.

Goods – Refer to all items, supplies, materials and general support services, except Consulting Services and Infrastructure Projects, which may be needed in the transaction of public businesses or in the pursuit of any government undertaking, project or activity, whether in the nature of equipment, furniture, stationery, materials for construction, or personal property of any kind, including non-personal or contractual services such as the repair and maintenance of equipment and furniture, as well as trucking, hauling, janitorial, security, and related or analogous services, as well as procurement of materials and supplies provided by the Procuring Entity for such services. The term “related” or “analogous services” shall include, but is not limited to, lease or purchase of office space, media advertisements, health maintenance services, and other services essential to the operation of the Procuring Entity. (2016 revised IRR, Section 5[r])

GOP – Government of the Philippines.

Infrastructure Projects – Include the construction, improvement, rehabilitation, demolition, repair, restoration or maintenance of roads and bridges, railways, airports, seaports, communication facilities, civil works components of information technology projects, irrigation, flood control and drainage, water supply, sanitation, sewerage and solid waste management systems, shore protection, energy/power and electrification facilities, national buildings, school buildings, hospital buildings, and other related construction projects of the government. Also referred to as *civil works or works*. (2016 revised IRR, Section 5[u])

LGUs – Local Government Units.

NFCC – Net Financial Contracting Capacity.

NGA – National Government Agency.

PCAB – Philippine Contractors Accreditation Board.

PhilGEPS - Philippine Government Electronic Procurement System.

Procurement Project – refers to a specific or identified procurement covering goods, infrastructure project or consulting services. A Procurement Project shall be described, detailed, and scheduled in the Project Procurement Management Plan prepared by the agency which shall be consolidated in the procuring entity's Annual Procurement Plan. (GPPB Circular No. 06-2019 dated 17 July 2019)

PSA – Philippine Statistics Authority.

SEC – Securities and Exchange Commission.

SLCC – Single Largest Completed Contract.

UN – United Nations.

Section I. Invitation to Bid

Notes on the Invitation to Bid

The Invitation to Bid (IB) provides information that enables potential Bidders to decide whether to participate in the procurement at hand. The IB shall be posted in accordance with Section 21.2 of the 2016 revised IRR of RA No. 9184.

Apart from the essential items listed in the Bidding Documents, the IB should also indicate the following:

- a. The date of availability of the Bidding Documents, which shall be from the time the IB is first advertised/posted until the deadline for the submission and receipt of bids;
- b. The place where the Bidding Documents may be acquired or the website where it may be downloaded;
- c. The deadline for the submission and receipt of bids; and
- d. Any important bid evaluation criteria.

The IB should be incorporated into the Bidding Documents. The information contained in the IB must conform to the Bidding Documents and in particular to the relevant information in the Bid Data Sheet.



Republic of the Philippines
DEPARTMENT OF PUBLIC WORKS AND HIGHWAYS
ISABELA 3RD
DISTRICT ENGINEERING OFFICE
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INVITATION TO BID FOR
24BG0272

ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macaña Creek, Phase I, Barangay Luzon, Cabatuan, Isabela

1. The DPWH-Isabela 3rd District Engineering Office, through the FY2024 GAA (General Appropriations Act) intends to apply the sum of **₱ 96,499,985.02** being the Approved Budget for the Contract (ABC) to payments under the for contract ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macaña Creek, Phase I, Barangay Luzon, Cabatuan, Isabela- Contract ID 24BG0272. Bids received in excess of the ABC shall be automatically rejected at bid opening.
2. The DPWH-Isabela 3rd District Engineering Office through its Bids and Awards Committee now invites bids for the hereunder Works:

Contract ID	:	24BG0272
Name of Contract	:	ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macaña Creek, Phase I, Barangay Luzon, Cabatuan, Isabela
Scope of Work/ Brief Description	:	Construction of Flood Mitigation Structure
ABC	:	PHP 96,499,985.02
Contract Duration	:	321 C.D.
Cost of Bidding Documents	:	PHP 50,000.00
Source of Fund	:	FY2024 GAA (General Appropriations Act)

Bidder should have completed a contract similar to the Project. The description of an eligible bidders is contained in the Bidding Documents, particularly, in Section II (Instruction to Bidders).

3. Prospective Bidders should be (1) registered with and classified by the Philippine Contractors Accreditation Board (PCAB) with **PCAB LICENSE Category of B for Medium A for General Engineering, GE-2 (Irrigation or Flood Control)**

Contractors/applicants who wish to participate in this bidding are encouraged to enroll in the DPWH Civil Works Application (CWA) at the DPWH Procurement Service (PrS), 5th Floor, DPWH Bldg., Bonifacio Drive, Port Area, Manila, while those already enrolled shall keep their records current and updated. The Contractor's eligibility to bid on the project will be determined using the DPWH Contractor Profile Eligibility Process (CPEP) and subject to further post-qualification. Information on registration can be obtained from the PrS during working weekdays from 7:00 am to 4:00 pm or at the DPWH website www.dpwh.gov.ph.

4. Bidding will be conducted through open competitive bidding procedures using non-discretionary “pass/fail” criterion as specified in the 2016 revised Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 9184.
5. Interested bidders may obtain further information from **DPWH-Isabela 3rd District Engineering Office** and inspect the Bidding Documents at the **BAC Secretariat, Procurement Unit Office, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela** during weekdays from **8:00 A.M. to 5:00 P.M.**
6. A complete set of Bidding Documents may be acquired by interested bidders on **January 08, 2025 to January 29, 2025 (8:00 A.M. – 5:00 P.M.) and January 30, 2025** until 09:00 A.M. at **BAC Secretariat, Procurement Unit Office, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela** and upon payment of the applicable fee for the Bidding Documents, pursuant to the latest Guidelines issued by the GPPB, in the amount of **PHP 50,000.00**. Bidders shall pay a non-refundable fee in any of the DPWH District Engineering Offices and may present its proof of payment in person or email the copy of receipt of payment in PDF at **electronicbids_isabela3@ dpwh.gov.ph** in accordance to the guideline of submission of electronic official receipt of purchase of the bidding documents contained in **Bid Data Sheet (BDS) ITB Clause 17**.
7. The Bidding Documents may also be downloaded free of charge from the website of the Philippine Government Electronic Procurement System (PhilGEPS), and the website of the Procuring Entity, provided that bidders shall pay the applicable fee for the Bidding Documents not later than the submission of their bids.
8. The DPWH-Isabela Third District Engineering Office will hold a Pre-Bid Conference on **January 16, 2025 at 9:00 A.M.** at **New Conference Room, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela** through live streaming on Youtube: **<https://www.youtube.com/@DPWHIsabela3rdDEO>** and shall be open to prospective bidders or bidder’s representative who chose to attend the activity, subject to existing health protocol.
9. Bid submission maybe done **manually** or **electronically/online**. However, **bidders should only select one mode of submission**, either manual or electronic. Similar to manual submission, the guidelines for the preparation and submission of an electronic bid are contained in **BDS ITB Clause 17**.
10. Bids must be duly received by the BAC Secretariat through manual submission at this office address or at **electronicbids_isabela3@dpwh.gov.ph** for electronic submission on or before **January 30, 2025 at 9:00 A.M.** Late bids shall not be accepted.
11. All bids must be accompanied by a bid security in any of the acceptable forms and in the amount stated in **Instruction To Bidders (ITB) Clause 15**.
12. Bid opening shall be on **January 30, 2025, immediately after the deadline of submission of bids**, at **New Conference Room, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela** through live streaming on Youtube: **<https://www.youtube.com/@DPWHIsabela3rdDEO>** and shall be open to prospective bidders or bidder’s representative who chose to attend the activity, subject to existing health protocol. Late bids shall not be accepted.
13. The DPWH-Isabela 3rd District Engineering Office reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Sections 35.1 and 41 of the 2016 revised Implementing Rules and Regulations (IRR) of RA No. 9184, without thereby incurring any liability to the affected bidder or bidders.
14. The summary of schedule of key procurement activities for this Contract is shown below:

Activity	Time	Place
1. Issuance/Downloading of Bidding Documents	January 08, 2025 to January 29, 2025 (8:00 A.M. – 5:00 P.M.) and January 30, 2025 until 9:00 A.M.	Hard copies are available at BAC Secretariat, Procurement Unit Office, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela. Downloadable from DPWH website: www.dpwh.gov.ph ,

Activity	Time	Place
		PhilGEPs website: www.philgeps.gov.ph
2. Pre-Bid Conference	January 16, 2025 at 9:00 A.M.	New Conference Room, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela through live streaming on Youtube: https://www.youtube.com/@DPWHIsabela3rdDEO
3. Receipt by the BAC of Bids	Deadline: January 30, 2025 at 9:00 A.M.	Bids must be duly received by the BAC Secretariat through manual submission at the Procurement Unit Office, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela or at electronicbids_isabela3@dpwh.gov.ph for electronic submission (BDS ITB Clause 17)
4. Opening of Bids	January 30, 2025, immediately after the deadline of submission of bids	New Conference Room, BAC, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela.

15. For further information, please refer to the following:

ALBERT L. CASTILLO
BAC Chairman
DPWH-Isabela 3rd DEO,
Tagaran, Cauayan City

FEDERICO R. PARAOAN, JR.
HEAD of BAC Secretariat
DPWH-Isabela 3rd DEO,
Tagaran, Cauayan City
procurementitdeo@gmail.com
CP No. 0995-431-8879

16. You may visit the following websites:

For downloading of Bidding Documents:

DPWH website: www.dpwh.gov.ph

PhilGEPs website: www.philgeps.gov.ph

For online bid submission:

electronicbids_isabela3@dpwh.gov.ph

Date of Issue: **January 08, 2025**

ALBERT L. CASTILLO
BAC Chairman
Assistant District Engineer

Section II. Instructions to Bidders

Notes on the Instructions to Bidders

This Section on the Instruction to Bidders (ITB) provides the information necessary for bidders to prepare responsive bids, in accordance with the requirements of the Procuring Entity. It also provides information on bid submission, eligibility check, opening and evaluation of bids, post-qualification, and on the award of contract.

1. Scope of Bid

The Procuring Entity, **Department of Public Works and Highways (DPWH)-Isabela Third District Engineering Office** invites Bids for the **24BG0272 : ORGANIZATIONAL OUTCOME 2: Protect Lives and Properties Against Major Floods- Flood Management Program- Construction/ Rehabilitation of Flood Mitigation Facilities within Major River Basins and Principal Rivers- Construction of Flood Control Project at Macaña Creek, Phase I, Barangay Luzon, Cabatuan, Isabela.**

The Procurement Project (referred to herein as “Project”) is for the construction of Works, as described in Section VI (Specifications).

2. Funding Information

2.1. The GOP through the source of funding as indicated below for **FY2025** in the amount of **₱ 100,000,000.00**.

2.2. The source of funding is:

a. FY2024 GAA (General Appropriations Act)

3. Bidding Requirements

The Bidding for the Project shall be governed by all the provisions of RA No. 9184 and its 2016 revised IRR, including its Generic Procurement Manual and associated policies, rules and regulations as the primary source thereof, while the herein clauses shall serve as the secondary source thereof.

Any amendments made to the IRR and other GPPB issuances shall be applicable only to the ongoing posting, advertisement, or invitation to bid by the BAC through the issuance of a supplemental or bid bulletin.

The Bidder, by the act of submitting its Bid, shall be deemed to have inspected the site, determined the general characteristics of the contracted Works and the conditions for this Project, such as the location and the nature of the work; (b) climatic conditions; (c) transportation facilities; (c) nature and condition of the terrain, geological conditions at the site communication facilities, requirements, location and availability of construction aggregates and other materials, labor, water, electric power and access roads; and (d) other factors that may affect the cost, duration and execution or implementation of the contract, project, or work and examine all instructions, forms, terms, and project requirements in the Bidding Documents.

4. Corrupt, Fraudulent, Collusive, Coercive, and Obstructive Practices

The Procuring Entity, as well as the Bidders and Contractors, shall observe the highest standard of ethics during the procurement and execution of the contract. They or through an agent shall not engage in corrupt, fraudulent, collusive, coercive, and obstructive practices defined under Annex “I” of the 2016 revised IRR of RA No. 9184 or other integrity violations in competing for the Project.

5. Eligible Bidders

- 5.1. Only Bids of Bidders found to be legally, technically, and financially capable will be evaluated.
- 5.2. The Bidder must have an experience of having completed a Single Largest Completed Contract (SLCC) that is similar to this Project, equivalent to at least fifty percent (50%) of the ABC adjusted, if necessary, by the Bidder to current prices using the PSA’s CPI, except under conditions provided for in Section 23.4.2.4 of the 2016 revised IRR of RA No. 9184.

A contract is considered to be “similar” to the contract to be bid if it has the major categories of work stated in the **BDS**.

- 5.3. For Foreign-funded Procurement, the Procuring Entity and the foreign government/foreign or international financing institution may agree on another track record requirement, as specified in the Bidding Document prepared for this purpose.
- 5.4. The Bidders shall comply with the eligibility criteria under Section 23.4.2 of the 2016 IRR of RA No. 9184.

6. Origin of Associated Goods

There is no restriction on the origin of Goods other than those prohibited by a decision of the UN Security Council taken under Chapter VII of the Charter of the UN.

7. Subcontracts

- 7.1. The Bidder may subcontract portions of the Project to the extent allowed by the Procuring Entity as stated herein, but in no case more than fifty percent (50%) of the Project.

The Procuring Entity has prescribed that:

- a. Subcontracting is not allowed.

8. Pre-Bid Conference

The Procuring Entity will hold a pre-bid conference for this Project on the specified date and time and either at its physical address and/or through videoconferencing as indicated in paragraph 8 of the **IB**.

9. Clarification and Amendment of Bidding Documents

Prospective bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such requests must be in writing and received by the Procuring Entity, either at its given address or through electronic mail indicated in the **IB**, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.

10. Documents Comprising the Bid: Eligibility and Technical Components

- 10.1. The first envelope shall contain the eligibility and technical documents of the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 10.2. If the eligibility requirements or statements, the bids, and all other documents for submission to the BAC are in foreign language other than English, it must be accompanied by a translation in English, which shall be authenticated by the appropriate Philippine foreign service establishment, post, or the equivalent office having jurisdiction over the foreign bidder's affairs in the Philippines. For Contracting Parties to the Apostille Convention, only the translated documents shall be authenticated through an apostille pursuant to GPPB Resolution No. 13-2019 dated 23 May 2019. The English translation shall govern, for purposes of interpretation of the bid.
- 10.3. A valid special PCAB License in case of Joint Ventures, and registration for the type and cost of the contract for this Project. Any additional type of Contractor license or permit shall be indicated in the **BDS**.
- 10.4. A List of Contractor's key personnel (e.g., Project Manager, Project Engineers, Materials Engineers, and Foremen) assigned to the contract to be bid, with their complete qualification and experience data shall be provided. These key personnel must meet the required minimum years of experience set in the **BDS**.
- 10.5. A List of Contractor's major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership, certification of availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be, must meet the minimum requirements for the contract set in the **BDS**.

11. Documents Comprising the Bid: Financial Component

- 11.1. The second bid envelope shall contain the financial documents for the Bid as specified in **Section IX. Checklist of Technical and Financial Documents**.
- 11.2. Any bid exceeding the ABC indicated in paragraph 1 of the **IB** shall not be accepted.
- 11.3. For Foreign-funded procurement, a ceiling may be applied to bid prices provided the conditions are met under Section 31.2 of the 2016 revised IRR of RA No. 9184.

12. Alternative Bids

Bidders shall submit offers that comply with the requirements of the Bidding Documents, including the basic technical design as indicated in the drawings and specifications. Unless there is a value engineering clause in the **BDS**, alternative Bids shall not be accepted.

13. Bid Prices

All bid prices for the given scope of work in the Project as awarded shall be considered as fixed prices, and therefore not subject to price escalation during contract implementation, except under extraordinary circumstances as determined by the NEDA and approved by the GPPB pursuant to the revised Guidelines for Contract Price Escalation guidelines.

14. Bid and Payment Currencies

- 14.1. Bid prices may be quoted in the local currency or tradeable currency accepted by the BSP at the discretion of the Bidder. However, for purposes of bid evaluation, Bids denominated in foreign currencies shall be converted to Philippine currency based on the exchange rate as published in the BSP reference rate bulletin on the day of the bid opening.

- 14.2. *Payment of the contract price shall be made in:*

[Select one, delete other/s]

- a. Philippine Pesos.
- b. *[indicate currency if procurement involves a foreign-denominated bid as allowed by the Procuring Entity, which shall be tradeable or acceptable by the BSP.]*

15. Bid Security

- 15.1. The Bidder shall submit a Bid Securing Declaration or any form of Bid Security in the amount indicated in the **BDS**, which shall be not less than the percentage of the ABC in accordance with the schedule in the **BDS**.
- 15.2. The Bid and bid security shall be valid until *[indicate date]*. Any bid not accompanied by an acceptable bid security shall be rejected by the Procuring Entity as non-responsive.

16. Sealing and Marking of Bids

Each Bidder shall submit one copy of the first and second components of its Bid.

The Procuring Entity may request additional hard copies and/or electronic copies of the Bid. However, failure of the Bidders to comply with the said request shall not be a ground for disqualification.

If the Procuring Entity allows the submission of bids through online submission to the given website or any other electronic means, the Bidder shall submit an electronic copy of its Bid, which must be digitally signed. An electronic copy that cannot be opened or is corrupted shall be considered non-responsive and, thus, automatically disqualified.

17. Deadline for Submission of Bids

The Bidders shall submit on the specified date and time and either at its physical address or through online submission as indicated in paragraph 7 of the **IB**.

18. Opening and Preliminary Examination of Bids

- 18.1. The BAC shall open the Bids in public at the time, on the date, and at the place specified in paragraph 9 of the **IB**. The Bidders' representatives who are present shall sign a register evidencing their attendance. In case videoconferencing, webcasting or other similar technologies will be used, attendance of participants shall likewise be recorded by the BAC Secretariat.

In case the Bids cannot be opened as scheduled due to justifiable reasons, the rescheduling requirements under Section 29 of the 2016 revised IRR of RA No. 9184 shall prevail.

- 18.2. The preliminary examination of Bids shall be governed by Section 30 of the 2016 revised IRR of RA No. 9184.

19. Detailed Evaluation and Comparison of Bids

- 19.1. The Procuring Entity's BAC shall immediately conduct a detailed evaluation of all Bids rated "*passed*" using non-discretionary pass/fail criteria. The BAC shall consider the conditions in the evaluation of Bids under Section 32.2 of 2016 revised IRR of RA No. 9184.
- 19.2. If the Project allows partial bids, all Bids and combinations of Bids as indicated in the **BDS** shall be received by the same deadline and opened and evaluated simultaneously so as to determine the Bid or combination of Bids offering the lowest calculated cost to the Procuring Entity. Bid Security as required by **ITB** Clause 15 shall be submitted for each contract (lot) separately.
- 19.3. In all cases, the NFCC computation pursuant to Section 23.4.2.6 of the 2016 revised IRR of RA No. 9184 must be sufficient for the total of the ABCs for all the lots participated in by the prospective Bidder.

20. Post Qualification

Within a non-extendible period of five (5) calendar days from receipt by the Bidder of the notice from the BAC that it submitted the Lowest Calculated Bid, the Bidder shall submit its latest income and business tax returns filed and paid through the BIR Electronic Filing and Payment System (eFPS), and other appropriate licenses and permits required by law and stated in the **BDS**.

21. Signing of the Contract

The documents required in Section 37.2 of the 2016 revised IRR of RA No. 9184 shall form part of the Contract. Additional Contract documents are indicated in the **BDS**.

Section III. Bid Data Sheet

Notes on the Bid Data Sheet (BDS)

The Bid Data Sheet (BDS) consists of provisions that supplement, amend, or specify in detail, information, or requirements included in the ITB found in Section II, which are specific to each procurement.

This Section is intended to assist the Procuring Entity in providing the specific information in relation to corresponding clauses in the ITB and has to be prepared for each specific procurement.

The Procuring Entity should specify in the BDS information and requirements specific to the circumstances of the Procuring Entity, the processing of the procurement, and the bid evaluation criteria that will apply to the Bids. In preparing the BDS, the following aspects should be checked:

- a. Information that specifies and complements provisions of the ITB must be incorporated.
- b. Amendments and/or supplements, if any, to provisions of the ITB as necessitated by the circumstances of the specific procurement, must also be incorporated.

Bid Data Sheet

ITB Clause	
5.2	Contracts similar to the Project refer to contracts which have the same major categories of work, which shall be: (1) The following are the “Major Categories of Works” involved in the contract to bid: FCSPS – Flood Control: Construction – Slope Protection using Structural Measures (e.g. Revetment, Retaining Structures, Wirenet) (2) The following are the “Similar Categories of Works” that shall be considered in the evaluation of the work experience required for the contract to be bid: 1. RCSPS – Roads: Construction – Slope Protection using Structural Measures (e.g. Revetment, Retaining Structures, Wirenet) 2. FHR – Flood Control: Hydraulics – River Control 3. PHC – Ports/Harbors: Causeway 4. FHD – Flood Control: Hydraulics – Dam Note: The above SLCC must be supported by an owner’s certificate of Final acceptance issued by the project owner other than the contractor or a final rating at least satisfactory in the Contractors Performance Evaluation system (CPES). In case of contracts with private sector, an equivalent document shall be submitted. Qualifier: Bidders must have completed: 1. At least one (1) contract that is similar to the following works among others: a. Concrete Revetment. Gabion Revetment 2. Similar slope protection works with at least 50 % of item of work of the project.
7.1	<i>Subcontracting is not allowed: Subcontracting is not allowed in accordance with the 2016 Revised IRR of R.A. 9184.</i>
10.3	<i>No further instructions</i>
10.4	The key personnel must meet the required minimum years of experience set below:

Key Personnel	General Experience	Relevant Experience	T.I. N																																							
Project Manager	5	3																																								
Project Manager	5	3																																								
	NO accreditation required as per unnumbered Department Order Dated November 28,2024 Subject: suspension of Department Order No.148 Series of 2024																																									
Materials Engineer I	DPWH Accredited Materials Engineer I																																									
Foreman	5	3																																								
Safety Officer	Certified by DOLE																																									
Accredited Safety officer (Required Upon Issuance of Notice of Award) Subject to D.O 98 Series of 2014: Submission of Construction Safety and Health Program approved by the department of labor and Employment (DOLE). First Aider w/ Certification of training issued by RED CROSS in Compliance to DOLE Requirements for the approval by the Construction safety & Health program (Required upon issuance of Notice of Award) subject to D.O98. Series of 2014: Submission of Construction Safety and Health Program Approved by the department of Labor and Employment (DOLE) The key Personnel should be meet the following Number of years' Work Experience. 1.The Experience means total years of Civil Works Experience (of any nature in construction and engineering consultancy services) 2.Include the Tax Identification Number (TIN) of the Key Personnel. Compliance to d.o.98 Series of 2016: revise Guidelines on the accreditation of contractors' Materials Engineer. 3.Include the Accreditation number and contact numbers of the Materials Engineer.																																										
10.5	The minimum major equipment requirements are the following: <table><tr><th>Equipment</th><th>Capacity</th><th>Number of Units</th></tr><tr><td>Bar Cutter</td><td></td><td>1</td></tr><tr><td>Bar Bender</td><td></td><td>1</td></tr><tr><td>Cargo Truck</td><td>9-10 mt</td><td>1</td></tr><tr><td>Concrete Vibrator</td><td></td><td>1</td></tr><tr><td>Water Truck/Pump</td><td>16000 L</td><td>1</td></tr><tr><td>Dump Truck</td><td>12 cu.yd.</td><td>2</td></tr><tr><td>Payloader</td><td>1.50 cu.m.</td><td>1</td></tr><tr><td>Bulldozer (DX175)</td><td>165 hp</td><td>1</td></tr><tr><td>Backhoe</td><td>0.80 cu.m.</td><td>1</td></tr><tr><td>Backhoe (Wheel Mounted)</td><td>0.28 cu.m.</td><td>1</td></tr><tr><td>Chain Saw</td><td></td><td></td></tr><tr><td>Truck Mounted Crane</td><td>41-45 T</td><td>1</td></tr></table>			Equipment	Capacity	Number of Units	Bar Cutter		1	Bar Bender		1	Cargo Truck	9-10 mt	1	Concrete Vibrator		1	Water Truck/Pump	16000 L	1	Dump Truck	12 cu.yd.	2	Payloader	1.50 cu.m.	1	Bulldozer (DX175)	165 hp	1	Backhoe	0.80 cu.m.	1	Backhoe (Wheel Mounted)	0.28 cu.m.	1	Chain Saw			Truck Mounted Crane	41-45 T	1
Equipment	Capacity	Number of Units																																								
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Backhoe (Wheel Mounted)	0.28 cu.m.	1																																								
Chain Saw																																										
Truck Mounted Crane	41-45 T	1																																								

	Vibro Hammer (MHF12 w/ Hyd. Power Pack), 222		1
	Generator Set	1125 kVA	1
	Welding Machine, Electric Driven/DC Output	500 Amperes	1
	Cutting Outfit		1
	Lowbed		2
	For <u>Minimum Materials Testing Equipment</u>, please see attached DPWH Department Order No. 11 dated January 24, 2017 with the subject: “Inclusion of the Minimum Materials Testing Equipment in the Technical Component of the Bid”		

Minimum Materials Testing Equipment for Small Contractors

Equipment	Tests	Materials/Products
Sieve, Std., 200 mm diameter, opening 75 mm (3") -ditto- 63 mm (2 1/2") -ditto- 50 mm (2") -ditto- 37.5 mm (1 1/2") -ditto- 25.0 mm (1") -ditto- 19.0 mm (3/4") -ditto- 12.5 mm (1/2") -ditto- 9.5 mm (3/8") -ditto- 4.75 mm (No. 4) -ditto- 2.36 mm (No. 8) -ditto- 2.00 mm (No. 10) -ditto- 1.18 mm (No. 16) -ditto- 0.600 mm (No. 30) -ditto- 0.425 mm (No. 40) -ditto- 0.300 mm (No. 50) -ditto- 0.150 mm (No. 100) -ditto- 0.075 mm (No. 200)	Grading Test, PL-LL Tests Soundness Test, Abrasion Test, Field Density Test, Specific Gravity	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregate, Soil Aggregates, Aggregate Surface Course
Pan, Brass, 200mm dia. x 50 mm deep		
Cover, Brass, Sieve		
Brush, Fine Sieve		
Brush, Wire, Sieve		
Mortar & Pestle		
Atterberg Limit Test Set 1 - Liquid Limit Device 1 - Mixing Dish 1 - Spatula, flexible 1 - Graduated Cylinder, glass, 100 ml 24 - Moisture Content can, 60 ml, tin	PL-LL Tests	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
Glass Plate, Plastic Limit		
Hammer, Modified Compaction		
Mold, Compaction, 152.4 mm diameter x 116.4 mm height	Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Stabilized Road Mix Base Course, Treated Plant Mix Base Course
Moisture Content Can, 225ml, tin	Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Stabilized Road Mix
	FDT	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Subbase Course, Compacted

Minimum Materials Testing Equipment for Small Contractors

Equipment	Tests	Materials/Products
		Base Course, Aggregate Surface Course
Field Density Test Set 1 - Sand Density Cone 1 - Jug, Glass or Plastic, 4-L capacity 1 - Density Plate 1 - Straight Edge 1 - Spoon 1 - 25 mm Chisel, Steel 1 - 4-L Field Can 1 - Mallet, rubber 1 - Scoop, sand	Field Density Test	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Auger, Post Hole, with two-m extension	Soil Sampling	Disturbed Soil Sampling
Cylinder, Glass, Double Graduated, 500mL cap.	PL-LL Test, Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Bowl, Mixing, 250mm dia.x90mm high	Aggregate and soil test sampling, Field Density Test (FDT)	Excavated Materials, Embankment, Portland Cement, Soil Aggregates
Pan, Square, G.I. 600mmx600mmx75mm		
Spade or Shovel		
Pickaxe		Excavated Materials, Embankment, Fine Aggregates
Crowbar		Excavated Materials, Embankment, Coarse Aggregates
Balance, Triple Beam, 311g cap. (0.01g sensitivity)	PL-LL Test	Excavated Materials, Embankment, Portland Cement, Soil Aggregates
	Specific Gravity Test	Excavated Materials, Embankment, Fine Aggregates
Balance, Triple Beam, 2610g cap. (0.1g sensitivity)	Soundness Test, FDT, Moisture Content	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
	Specific Gravity Test	Excavated Materials, Embankment, Coarse Aggregates
Balance, Heavy Duty Solution, 20kg cap. (1g sensitivity)	Compaction, Specific Gravity, Field Density Test	Soil Analysis
Mold, Steel, Cylinder, 150mmx300mm	Compression Test	Fresh Concrete Mix
Mold, Steel Beam, 150mmx150mmx500mm	Flexural Test	Fresh Concrete Mix
Slump Test Set Slump Cone, Complete with base and tamping rod Trowel, Triangular or Rectangular blade, 90mmx180mm Scale	Concrete Slump Test	Fresh Concrete Mix
Thermometer, Metal, dial type, 0-250°C	Temperature Monitor of Concrete & Asphalt	Concrete & Asphalt Mixes
Concrete Measure 0.014 cu.m. cap. (1/2 cu.ft.)	Unit Weight	Concrete Aggregate

Minimum Materials Testing Equipment for Small Contractors

Equipment	Tests	Materials/Products
Straight Edge, Steel 300mm long	Laboratory Compaction	Soil Aggregate
Concrete Mixer, Portable	Mixing of Fresh Concrete	Mix Products

Minimum Materials Testing Equipment for Medium Contractors

Equipment	Tests	Materials/Products
Sieve, Std., 200 mm diameter, opening 75 mm (3") -ditto- 63 mm (2 1/2") -ditto- 50 mm (2") -ditto- 37.5 mm (1 1/2") -ditto- 25.0 mm (1") -ditto- 19.0 mm (3/4") -ditto- 12.5 mm (1/2") -ditto- 9.5 mm (3/8") -ditto- 4.75 mm (No. 4) -ditto- 2.36 mm (No. 8) -ditto- 2.00 mm (No. 10) -ditto- 1.18 mm (No. 16) -ditto- 0.600 mm (No. 30) -ditto- 0.425 mm (No. 40) -ditto- 0.300 mm (No. 50) -ditto- 0.150 mm (No. 100) -ditto- 0.075 mm (No. 200)	Grading Test, PL-LL Test Soundness Test, Abrasion Test, Field Density Test (FDT), Specific Gravity	Excavated materials, Embankment, Fine/Coarse/Crushed Aggregate, Soil Aggregates, Aggregate Surface Course
Pan, Brass, 200mm dia. X 50 mm deep		
Cover, Brass, Sieve		
Brush, Fine Sieve		
Brush, Wire, Sieve		
Balance, Heavy Duty Solution, 20kg cap. (1g sensitivity)	Compaction, Specific Gravity, Field Density Test (FDT)	Soil Analysis
Mortar, Soil, Porcelain, 125mm dia.	PL-LL Tests	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
Pestle, Soil, Rubber Tip		
Atterberg Limit Test Set 1 - Liquid Limit Device 1 - Mixing Dish 1 - Spatula, flexible 1 - Graduated Cylinder, glass, 100 ml 12 - Moisture Content can, 60 ml, tin		
Glass Plate, Plastic Limit		

Minimum Materials Testing Equipment for Medium Contractors

Equipment	Tests	Materials/Products
Balance, Triple Beam, 311g cap. (0.01g sensitivity)	PL-LL Tests	Excavated Materials, Embankment, Portland Cement, Soil Aggregates
	Specific Gravity Test	Excavated Materials, Embankment, Fine Aggregates
Balance, Triple Beam, 2610g cap. (0.19g sensitivity)	Soundness Test, Field Density Test (FDT), Moisture Content	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
	Specific Gravity Test	Excavated Materials, Embankment, Coarse Aggregates,
Hammer, Modified Compaction	Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Stabilized Road Mix Base Course, Treated Plant Mix Base Course
Mold, Compaction, 101.6 mm diameter x 116.4 mm height		
Moisture Content Can, 225mL, tin	Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Stabilized Road Mix
	Field Density Test (FDT)	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Concrete Measure 0.014 cu.m. cap. (1/2 cu.ft.)	Unit Weight	Concrete Aggregate
Straight Edge, Steel 300mm long	Laboratory Compaction	Soil Aggregate
Field Density Test Set 1 - Sand Density Cone 1 - Jug, Glass or Plastic, 4-L capacity 1 - Density Plate 1 - Straight Edge 1 - Spoon 1 - 25 mm Chisel, Steel 1 - 4-L Field Can 1 - Mallet, rubber 1 - Scoop, sand	Field Density Test (FDT)	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Auger, Post Hole, with two-m extension	Soil Sampling	Disturbed Soil Sampling
Cylinder, Glass, Double Graduated, 500mL cap.	PL-LL Tests, Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base
Bowl, Mixing, 250mm dia.x90mm high		

Minimum Materials Testing Equipment for Medium Contractors

Equipment	Tests	Materials/Products
Pan, Square, G.I. 600mmx600mmx75mm	Aggregate and soil test sampling, Field Density Test (FDT)	Course, Aggregate Surface Course
Spade or Shovel		
Pickaxe		
Crowbar		
Concrete Mixer, Portable	Mixing of Fresh Concrete	Mix Products
Slump Test Set 1 - Slump Cone, Complete with base and tamping rod 1 - Trowel, Triangular or Rectangular blade, 90mmx180mm 1 - Scale	Concrete Slump Test	Fresh Concrete Mix
Mold, Steel, Cylinder, 150mmx300mm	Compression Test	Fresh Concrete Mix
Mold, Steel Beam, 150mmx150mmx500mm	Flexural Test	Fresh Concrete Mix
Vertical Capping Set 1 - Vertical Cylinder Capper with capping plate, 150mm diameter 1 - Capping compound warmer pot, 4-L cap. 1 - Capping ladder 1 - Carton capping compound	Capping of concrete cylinder sample	Hardened Concrete
Thermometer, Metal, dial type, 0-250°C	Temperature Monitor of Concrete & Asphalt	Concrete & Asphalt mixes

Minimum Materials Testing Equipment for Large Contractors

Equipment	Tests	Materials/Products
Sieve, Std., 200 mm diameter, opening 75 mm (3") -ditto- 63 mm (2 1/2") -ditto- 50 mm (2") -ditto- 37.5 mm (1 1/2") -ditto- 25.0 mm (1") -ditto- 19.0 mm (3/4") -ditto- 12.5 mm (1/2") -ditto- 9.5 mm (3/8") -ditto- 4.75 mm (No. 4) -ditto- 2.36 mm (No. 8) -ditto- 2.00 mm (No. 10) -ditto- 1.18 mm (No. 16) -ditto- 0.600 mm (No. 30)	Grading Test, PL-LL Test, Soundness Test, Abrasion Test, Field Density Test, Specific Gravity	Excavated materials, Embankment, Fine/Coarse/Crushed Aggregate, Soil Aggregates, Aggregate Surface Course

Minimum Materials Testing Equipment for Large Contractors

Equipment	Tests	Materials/Products
-ditto- 0.425 mm (No. 40) -ditto- 0.300 mm (No. 50) -ditto- 0.150 mm (No. 100) -ditto- 0.075 mm (No. 200)		
Pan, Brass, 200mm dia. X 50 mm deep		
Cover, Brass, Sieve		
Brush, Fine Sieve		
Brush, Wire, Sieve		
Balance, Heavy Duty Solution, 20kg cap. (1g sensitivity)	Compaction Specific Gravity Test, Field Density Test (FDT)	Soil Analysis
Mortar, Soil, Porcelain, 125mm dia.		
Pestle, Soil, Rubber Tip		
Atterberg Limit Test Set 1 - Liquid Limit Device 1 - Mixing Dish 1 - Spatula, flexible 1 - Graduated Cylinder, glass, 100 ml 12 - Moisture Content can, 60 ml, tin	PL-LL Tests	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
Glass Plate, Plastic Limit		
Balance, Triple Beam, 311g cap. (0.01g sensitivity)	PL-LL Tests	Excavated Materials, Embankment, Soil Aggregates
	Specific Gravity Test	Excavated Materials, Embankment, Fine Aggregates,
Balance, Triple Beam, 2610g cap. (0.01g sensitivity)	Soundness Test, Field Density Test (FDT), Moisture Content	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course
	Specific Gravity Test	Excavated Materials, Embankment, Coarse Aggregates,
Hammer, Modified Compaction		Excavated Materials, Embankment,
Mold, Compaction, 101.6 mm diameter x 116.4 mm height	Laboratory Compaction	Fine/Coarse/Crushed Aggregates, Stabilized Road Mix Base Course, Treated Plant Mix Base Course

Minimum Materials Testing Equipment for Large Contractors

Equipment	Tests	Materials/Products
Moisture Content Can, 225mL, tin	Laboratory Compaction	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Stabilized Road Mix
	Field Density Test (FDT)	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Concrete Measure 0.014 cu.m. cap. (1/2 cu.ft.)	Unit Weight	Concrete Aggregate
Straight Edge, Steel 300mm long	Laboratory Compaction	Soil Aggregate
CBR Apparatus complete with accessories (Mechanical)	Determination of California Bearing Ratio	Fine/Coarse/Crushed Aggregates, Stabilized Road Mix Base Course, Treated Plant Mix Base Course, Aggregate Surface Course
Field Density Test Set 1 - Sand Density Cone 1 - Jug, Glass or Plastic, 4-L capacity 1 - Density Plate 1 - Straight Edge 1 - Spoon 1 - 25 mm Chisel, Steel 1 - 4-L Field Can 1 - Mallet, rubber 1 - Scoop, sand	Field Density Test (FDT)	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Aggregate Surface Course
Auger, Post Hole, with two-m extension	Soil Sampling	Disturbed Soil Sampling
Cylinder, Glass, Double Graduated, 500mL cap.	PL-LL Test Aggregate and soil test sampling, Field Density Test	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Bowl, Mixing, 250mm dia.x90mm high		
Pan, Square, G.I. 600mmx600mmx75mm		
Spade or Shovel		
Pickaxe		
Crowbar	Mixing of Fresh Concrete	Fresh Concrete Mix
Concrete Mixer, Portable		
Slump Test Set 1 - Slump Cone, Complete with base and tamping rod 1 - Trowel, Triangular or Rectangular blade, 90mmx180mm 1 - Scale	Concrete Slump Test	Fresh Concrete Mix
Mold, Steel, Cylinder, 150mmx300mm	Compression Test	Fresh Concrete Mix
Mold, Steel Beam, 150mmx150mmx500mm	Flexural Test	Fresh Concrete Mix

Minimum Materials Testing Equipment for Large Contractors

Equipment	Tests	Materials/Products
Vertical Capping Set 1 - Vertical Cylinder Capper with capping plate, 150mm diameter 1 - Capping compound warmer pot, 4-L cap. 1 - Capping ladle 1 - Carton capping compound	Capping of concrete cylinder sample	Hardened Concrete
Thermometer, Metal, dial type, 0-250°C	Temperature Monitor of Concrete & Asphalt	Concrete & Asphalt Mixes
Volumetric flask 500 ml cap. With stopper	Specific Gravity of Sand	Sand
Sand Absorption Cone and Tamper		
Specific Gravity Test Set or Coarse Aggregate 1 - Semi-automatic precision balance 5kg cap., 0.1g sensitivity 1 - Wire basket	Bulk Specific Gravity	Aggregates of Bituminous Mix, Asphalt Core, Fine/Coarse Aggregates,
Los Angeles Abrasion Machine complete with abrasive steel and #12sieve	Abrasion Test of Aggregates	Coarse/Crushed Aggregates, Soil Aggregates, Aggregate Surface Course,
Oven, Field, with temperature control	Field Density Test (FDT)	Excavated Materials, Embankment, Fine/Coarse/Crushed Aggregates, Compacted Base Course, Compacted Subbase Course, Aggregate Surface Course
Compression Machine, portable	Compression Test	Fresh Concrete Mix
Concrete Beam Tester, Flexural	Flexural Test	Fresh Concrete Mix
Concrete Core Drilling Machine complete with accessories	In-situ Test for Concrete/Asphalt Pavement	Concrete/Asphalt Pavement
Extractor, Centrifuge or Reflux, 1500g cap.	Extraction	Bituminous Mix
Carbon Tetrachloride	Asphalt Content/Grading of Aggregates	Asphalt/Aggregate Materials in Bituminous Mix
Marshall Stability Apparatus complete with accessories	Marshall Stability Test/ Job mix of Asphalt	Asphalt Mix

12	<i>No further instructions.</i>
15.1	The bid security shall be in the form of a Bid Securing Declaration or any of the following forms and amounts: a. The amount of not less than two percent (2%) of ABC, if bid security is in cash, cashier's/manager's check, bank draft/guarantee or irrevocable letter of credit; b. The amount of not less than five percent (5%) of ABC, if bid security is in Surety Bond.
17	Bid submission maybe done manually or electronically/online. However, bidders should only select one mode of submission, either manual or electronic. The address for receipt of Bids submitted manually is at the Procurement Unit Office, DPWH-Isabela Third District Engineering Office, Tagaran, Cauayan City, Isabela. The deadline for receipt of Bids is on January 30, 2025, 9:00 A.M.. For bids to be submitted electronically/online, the following procedures should be observed following D.O. 87-2020: 1. Submission of electronic Official Receipt of purchase of the Bidding Documents Prior to the deadline of submission of bids, the prospective bidders shall send an e-mail with subject “Official Receipt for [Insert Contract ID]” to <i>electronicbids_co_civilworks@dpwh.gov.ph</i>. Attached to the said e-mail is the copy of the Official Receipt of purchase of bidding documents in Portable Document File (PDF) format with file name in the format “<PCAB ID>_<CONTRACT ID>_OfficialReceipt.pdf”. For example, the filename of the attached PDF containing the Official Receipt of the Contractor with PCAB ID No. 12345, who intends to participate in the bidding of Contract ID No. 20Z00123 shall be “12345_20Z00123_OfficialReceipt.pdf”. Further, the e-mail subject would be “Official Receipt for 20Z00123”. In case a prospective bidder originally intends to join the bidding as a Joint Venture (referred as “original bidder”), has been issued an Official Receipt of purchase of bidding documents and has submitted the electronic Official Receipt, but eventually decided to join the bidding with new members or as individual contractors (referred as “regrouped bidder”), or vice-versa, the “regrouped bidder” should purchase a new bidding document to be issued with the corresponding Official Receipt in their name and submit the electronic Official Receipt following the same procedures.

	2. Confirmation of the electronically submitted Official Receipt 2.1 An e-mail shall be received by a prospective bidder confirming its successful submission of the Official Receipt as required under Item 1. 2.2 An e-mail shall also be received by a prospective bidder in instances where their sent e-mail related to Item 1: Only the electronic bids of bidders who have successfully submitted an electronic Official Receipt shall be accepted. a. Has incorrect subject Contract ID, which means that a corresponding folder with the same Contract ID does not exist in the eBid Portal; b. Has no attachment; c. Has an attachment but is not in the prescribed format; d. Has more than one (1) attachment; or e. Was received after the deadline of bid submission. For the foregoing cases, the prospective bidders should rectify/correct the noted deficiency/ies to comply with the requirements under Item 1 for its electronic bid to be accepted. 3. Preparation and submission of an electronic Bid The prospective bidders shall prepare and submit their bids electronically following the steps prescribed under with D.O. 87 - 2020 in accordance with GPPB Resolution No. 09-2020 as follows: a. Following GPPB Resolution No. 09-2020, a bidder has the option to submit bid electronically. However, If a bidder chooses to submit an electronic bid, the same bidder can no longer submit a bid manually for the same contract, and vice versa. b. Similar to manual submission, prospective bidders shall prepare their bids in two (2) file folders, each for the Technical and Financial Components. The file name of the Technical and Financial Components folders should be in the format <PCAB ID>_<CONTRACT_ID>_TECHNICAL and <PCAB ID>_<CONTRACT_ID>_FINANCIAL (e.g. 12345 20Z00123 TECHNICAL, 12345 20Z00123 FINANCIAL). c. Each file contained in the Technical and Financial Components file folders shall be in PDF format (either scanned or exported/published), with file name in the format <PCAB ID>_<CONTRACT ID>_DescriptiveFilename.pdf (e.g. 12345 20Z00123 PCABLicense.pdf, 12345 20Z00123 OmnibusSwornStatement.pdf). d. The compressed archive file folders of the Technical and Financial components shall be compiled in a PASSWORD PROTECTED COMPRESSED ARCHIVE MAIN FILE FOLDER with filename in the format
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<PCAB>_<CONTRACT ID>_Bid (e.g. 12345 20Z00123 Bid).

- e. The e-mail submitting the prospective bidder's electronic bid should have a Subject in the format **"Bid Submission for 20Z00016"** (e.g. "Bid Submission for 20Z00123").
- f. The prospective bidder shall submit its electronic bid to www.dpwh.gov.ph. using the prospective bidder's e-mail address registered in the Civil Works Application (CWA). In case prospective bidders are not yet registered, they can use any e-mail address, subject to the verification of the BAC Secretariat.

4. Modification of an electronic bid

If a bidder wishes to modify its electronic bid, he may do so following the procedures in the manual submission of bid or he may choose to submit his modification electronically in the same format prescribed in the preparation and submission of an electronic bid, except that the subject of the e-mail submitting the bid modification shall be labelled "Bid Modification X for <Contract ID>", where "X" represents the number of bid modification submitted. For example, the subject of an e-mail submitting a first bid modification for Contract ID No. 20Z00123 should be "Bid Modification 1 for 20Z00123".

5. Non-participation in the Bidding

In case a prospective bidder that have purchased a bidding document decided not to participate, he may choose to submit his letter of non-participation manually or electronically. In case of electronic submission, the contractor shall send an e-mail with the Subject "Non-participation for <Contract ID>" with the letter of non-participation as attachment with file name "<PCAB ID>_<CONTRACT ID>_Non-Participation.pdf". This e-mail should be sent to www.dpwh.gov.ph. before the deadline for bid submission.

6. Withdrawal of Electronic Bid

Bids may only be withdrawn prior the deadline for bid submission. In case of withdrawal of an electronic bid, the bidder shall send an e-mail with the subject "Bid Withdrawal for <Contract ID>" and the letter of bid withdrawal in pdf format with filename "<PCAB ID>_<CONTRACT ID>_BidWithdrawal.pdf" shall be attached. This e-mail should be sent to www.dpwh.gov.ph. before the deadline for bid submission.

7. Opening of the electronic bid

	Only during the actual opening of bids shall the bidder disclose the passwords for his electronic bid. This can be done by the bidder's authorized representative verbally in person, through phone call, online platforms (e.g. videoconferencing, webcasting), or through writing. In all cases, the bidders will have only three (3) attempts or fifteen (15) minutes, whichever comes first, to provide the correct password. Otherwise, the bidder shall be disqualified except in unforeseen justifiable circumstances. The bidder may also be subjected to the three-strike policy (D.O. 17, Series of 2015) as warranted by the circumstances. If the bidder chooses to disclose the password through phone call, he should make sure that the contact numbers as recorded in the Civil Works Application are open when the BAC calls to ask for the password. The bidder may also choose to call the BAC number [to be announced] during the bid opening time and wait for the opening of his bid for him to disclose the password. For online call/video calls, the bidder may call the BAC Messenger/Skype account [to be announced]. If the bidder chooses to attend the bid opening through online conference, the bidder should join the meeting using the following link [to be announced]. If the bidder chooses to disclose the passwords through writing, the letters for password 1 (Main File Folder/Technical Component File Folder) and password 2 (Financial Component File Folder) should be enclosed in separate envelopes with the sender details (AMO, Bidder Name, Address) addressed to the BAC Chairperson, with the details of the bidding (Contract ID, Contract Name, Bid Opening Date and Time), signed and sealed, with a remark "Password [Insert 1 or 2]. Do not open before actual bid opening date and time". All electronic bids (Password protected compressed archive main file folder/s) shall be opened first for the opening of the Technical Component compressed archive file folder/s. This shall be followed by the opening of the bids submitted manually for the opening of the Technical Component Envelopes. The same procedures apply for the Financial Component compressed archive file folder/s and financial component envelopes. If the electronic bid or file within it was found to be damaged, could not be extracted or opened, the bid shall be considered "Failed". If the electronic bid is not password-protected or is not in the required format, the bid shall still be accepted provided that the bidder acknowledges such condition. The BAC shall assume no responsibility for the misplacement of the contents of the contents of the improperly sealed or marked bid, or improperly compressed or password-protected folder, or for its premature opening. 8. File name convention in case of a Joint Venture Bidder
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	For Joint Venture (JV), the format of PCAB ID to be used by the bidder in naming their files, folders and archives shall be “JV-<PCAB ID of the Lead Member>”. For example, if three (3) Contractors with PCAB ID Nos. 12345 (lead member), 67890, and 24680 entered into a JV, the PCAB ID they must use is “JV-12345”.
19.2	Partial bids are allowed, as follows:
20	Not Applicable
21	Additional contract documents relevant to the Project: 1. Construction schedule and S-curve 2. Manpower schedule 3. Construction methods 4. Equipment utilization schedule 5. Construction safety and health program approved by the DOLE 6. Other acceptable tools of project scheduling.

Section IV. General Conditions of Contract

Notes on the General Conditions of Contract

The General Conditions of Contract (GCC) in this Section, read in conjunction with the Special Conditions of Contract in Section V and other documents listed therein, should be a complete document expressing all the rights and obligations of the parties.

Matters governing performance of the Contractor, payments under the contract, or matters affecting the risks, rights, and obligations of the parties under the contract are included in the GCC and Special Conditions of Contract.

Any complementary information, which may be needed, shall be introduced only through the Special Conditions of Contract.

1. Scope of Contract

This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. All the provisions of RA No. 9184 and its 2016 revised IRR, including the Generic Procurement Manual, and associated issuances, constitute the primary source for the terms and conditions of the Contract, and thus, applicable in contract implementation. Herein clauses shall serve as the secondary source for the terms and conditions of the Contract.

This is without prejudice to Sections 74.1 and 74.2 of the 2016 revised IRR of RA No. 9184 allowing the GPPB to amend the IRR, which shall be applied to all procurement activities, the advertisement, posting, or invitation of which were issued after the effectivity of the said amendment.

2. Sectional Completion of Works

If sectional completion is specified in the **Special Conditions of Contract (SCC)**, references in the Conditions of Contract to the Works, the Completion Date, and the Intended Completion Date shall apply to any Section of the Works (other than references to the Completion Date and Intended Completion Date for the whole of the Works).

3. Possession of Site

3.1 The Procuring Entity shall give possession of all or parts of the Site to the Contractor based on the schedule of delivery indicated in the **SCC**, which corresponds to the execution of the Works. If the Contractor suffers delay or incurs cost from failure on the part of the Procuring Entity to give possession in accordance with the terms of this clause, the Procuring Entity's Representative shall give the Contractor a Contract Time Extension and certify such sum as fair to cover the cost incurred, which sum shall be paid by Procuring Entity.

3.2 If possession of a portion is not given by the above date, the Procuring Entity will be deemed to have delayed the start of the relevant activities. The resulting adjustments in contract time to address such delay may be addressed through contract extension provided under Annex "E" of the 2016 revised IRR of RA No. 9184.

4. The Contractor's Obligations

The Contractor shall employ the key personnel named in the Schedule of Key Personnel indicating their designation, in accordance with **ITB** Clause 10.3 and specified in the **BDS**, to carry out the supervision of the Works.

The Procuring Entity will approve any proposed replacement of key personnel only if their relevant qualifications and abilities are equal to or better than those of the personnel listed in the Schedule.

5. Performance Security

- 5.1. Within ten (10) calendar days from receipt of the Notice of Award from the Procuring Entity but in no case later than the signing of the contract by both parties, the successful Bidder shall furnish the performance security in any of the forms prescribed in Section 39 of the 2016 revised IRR.
- 5.2. The Contractor, by entering into the Contract with the Procuring Entity, acknowledges the right of the Procuring Entity to institute action pursuant to RA No. 3688 against any subcontractor be they an individual, firm, partnership, corporation, or association supplying the Contractor with labor, materials and/or equipment for the performance of this Contract.

6. Site Investigation Reports

The Contractor, in preparing the Bid, shall rely on any Site Investigation Reports referred to in the **SCC** supplemented by any information obtained by the Contractor.

7. Warranty

- 7.1. In case the Contractor fails to undertake the repair works under Section 62.2.2 of the 2016 revised IRR, the Procuring Entity shall forfeit its performance security, subject its property(ies) to attachment or garnishment proceedings, and perpetually disqualify it from participating in any public bidding. All payables of the GOP in his favor shall be offset to recover the costs.
- 7.2. The warranty against Structural Defects/Failures, except that occasioned-on force majeure, shall cover the period from the date of issuance of the Certificate of Final Acceptance by the Procuring Entity. Specific duration of the warranty is found in the **SCC**.

8. Liability of the Contractor

Subject to additional provisions, if any, set forth in the **SCC**, the Contractor's liability under this Contract shall be as provided by the laws of the Republic of the Philippines.

If the Contractor is a joint venture, all partners to the joint venture shall be jointly and severally liable to the Procuring Entity.

9. Termination for Other Causes

Contract termination shall be initiated in case it is determined *prima facie* by the Procuring Entity that the Contractor has engaged, before, or during the implementation of the contract, in unlawful deeds and behaviors relative to contract acquisition and implementation, such as, but not limited to corrupt, fraudulent, collusive, coercive, and obstructive practices as stated in **ITB** Clause 4.

10. Dayworks

Subject to the guidelines on Variation Order in Annex “E” of the 2016 revised IRR of RA No. 9184, and if applicable as indicated in the **SCC**, the Dayworks rates in the Contractor’s Bid shall be used for small additional amounts of work only when the Procuring Entity’s Representative has given written instructions in advance for additional work to be paid for in that way.

11. Program of Work

- 11.1. The Contractor shall submit to the Procuring Entity’s Representative for approval the said Program of Work showing the general methods, arrangements, order, and timing for all the activities in the Works. The submissions of the Program of Work are indicated in the **SCC**.
- 11.2. The Contractor shall submit to the Procuring Entity’s Representative for approval an updated Program of Work at intervals no longer than the period stated in the **SCC**. If the Contractor does not submit an updated Program of Work within this period, the Procuring Entity’s Representative may withhold the amount stated in the **SCC** from the next payment certificate and continue to withhold this amount until the next payment after the date on which the overdue Program of Work has been submitted.

12. Instructions, Inspections and Audits

The Contractor shall permit the GOP or the Procuring Entity to inspect the Contractor’s accounts and records relating to the performance of the Contractor and to have them audited by auditors of the GOP or the Procuring Entity, as may be required.

13. Advance Payment

The Procuring Entity shall, upon a written request of the Contractor which shall be submitted as a Contract document, make an advance payment to the Contractor in an amount not exceeding fifteen percent (15%) of the total contract price, to be made in lump sum, or at the most two installments according to a schedule specified in the **SCC**, subject to the requirements in Annex “E” of the 2016 revised IRR of RA No. 9184.

14. Progress Payments

The Contractor may submit a request for payment for Work accomplished. Such requests for payment shall be verified and certified by the Procuring Entity’s Representative/Project Engineer. Except as otherwise stipulated in the **SCC**, materials and equipment delivered on the site but not completely put in place shall not be included for payment.

15. Operating and Maintenance Manuals

- 15.1. If required, the Contractor will provide “as built” Drawings and/or operating and maintenance manuals as specified in the **SCC**.

- 15.2. If the Contractor does not provide the Drawings and/or manuals by the dates stated above, or they do not receive the Procuring Entity's Representative's approval, the Procuring Entity's Representative may withhold the amount stated in the **SCC** from payments due to the Contractor.

Section V. Special Conditions of Contract

Notes on the Special Conditions of Contract

Similar to the BDS, the clauses in this Section are intended to assist the Procuring Entity in providing contract-specific information in relation to corresponding clauses in the GCC found in Section IV.

The Special Conditions of Contract (SCC) complement the GCC, specifying contractual requirements linked to the special circumstances of the Procuring Entity, the Procuring Entity's country, the sector, and the Works procured. In preparing this Section, the following aspects should be checked:

- a. Information that complements provisions of the GCC must be incorporated.
- b. Amendments and/or supplements to provisions of the GCC as necessitated by the circumstances of the specific purchase, must also be incorporated.

However, no special condition which defeats or negates the general intent and purpose of the provisions of the GCC should be incorporated herein.

Special Conditions of Contract

GCC Clause	
2	The Intended Completion Date is Three Hundred Twenty One (321) Calendar Days <i>Networking Days ----- 243</i> <i>Sunday and Holidays ----- 56</i> <i>Pre-Determined Unworkable Days ---- 22</i> <i>(Rainy Days)</i> <i>Total Calendar Days ----- 321 CD</i>
4.1	The Procuring Entity shall give possession of the Site to the Contractor upon the receipt of the Notice to Proceed.
6	The site investigation reports are: <i>None</i>
7.2	Permanent Structures: Fifteen (15) years. Buildings of types 4 and 5 as classified under the National Building Code of the Philippines and other structures made of steel, iron, or concrete which comply with relevant structural codes (e.g., DPWH Standards Specifications), such as, but not limited to, steel/concrete bridges, flyover, aircraft movement areas, ports, dams, tunnels, filtration and treatment plants, sewerage systems, power plants, transmission and communication towers, railway system, and other similar permanent structures.
10	a. No dayworks are applicable to the contract.
11.1	The Contractor shall submit the Program of Work to the Procuring Entity's Representative within ten (10) days of delivery of the Notice of Award.
11.2	The amount to be withheld for late submission of an updated Program of Work is <i>one percent (1%) of the progress billing</i> .
13	The amount of the advance payment is <i>shall not exceed 15% of the total contract price and schedule of payment</i> .
14	Materials and equipment delivered on the site but not completely put in place shall be included for payment.
15.1	The date by which "as built" drawings are required is <i>thirty (30) calendar days from completion of the project</i> .
15.2	The amount to be withheld for failing to produce "as built" drawings and/or operating and maintenance manuals by the date required is <i>10% of the final Contract Price</i> .

Section VI. Specifications

Notes on Specifications

A set of precise and clear specifications is a prerequisite for Bidders to respond realistically and competitively to the requirements of the Procuring Entity without qualifying or conditioning their Bids. In the context of international competitive bidding, the specifications must be drafted to permit the widest possible competition and, at the same time, present a clear statement of the required standards of workmanship, materials, and performance of the goods and services to be procured. Only if this is done will the objectives of economy, efficiency, and fairness in procurement be realized, responsiveness of Bids be ensured, and the subsequent task of bid evaluation facilitated. The specifications should require that all goods and materials to be incorporated in the Works be new, unused, of the most recent or current models, and incorporate all recent improvements in design and materials unless provided otherwise in the Contract.

Samples of specifications from previous similar projects are useful in this respect. The use of metric units is mandatory. Most specifications are normally written specially by the Procuring Entity or its representative to suit the Works at hand. There is no standard set of Specifications for universal application in all sectors in all regions, but there are established principles and practices, which are reflected in these PBDs.

There are considerable advantages in standardizing General Specifications for repetitive Works in recognized public sectors, such as highways, ports, railways, urban housing, irrigation, and water supply, in the same country or region where similar conditions prevail. The General Specifications should cover all classes of workmanship, materials, and equipment commonly involved in construction, although not necessarily to be used in a particular Works Contract. Deletions or addenda should then adapt the General Specifications to the particular Works.

Care must be taken in drafting specifications to ensure that they are not restrictive. In the specification of standards for goods, materials, and workmanship, recognized international standards should be used as much as possible. Where other particular standards are used, whether national standards or other standards, the specifications should state that goods, materials, and workmanship that meet other authoritative standards, and which ensure substantially equal or higher quality than the standards mentioned, will also be acceptable. The following clause may be inserted in the SCC.

Sample Clause: Equivalency of Standards and Codes

Wherever reference is made in the Contract to specific standards and codes to be met by the goods and materials to be furnished, and work performed or tested, the provisions of the latest current edition or revision of the relevant standards and codes in effect shall apply, unless otherwise expressly stated in the Contract. Where such standards and codes are national, or relate to a particular country or region, other authoritative standards that ensure a substantially equal or higher quality than the standards and codes specified will be accepted

subject to the Procuring Entity's Representative's prior review and written consent. Differences between the standards specified and the proposed alternative standards shall be fully described in writing by the Contractor and submitted to the Procuring Entity's Representative at least twenty-eight (28) days prior to the date when the Contractor desires the Procuring Entity's Representative's consent. In the event the Procuring Entity's Representative determines that such proposed deviations do not ensure substantially equal or higher quality, the Contractor shall comply with the standards specified in the documents.

These notes are intended only as information for the Procuring Entity or the person drafting the Bidding Documents. They should not be included in the final Bidding Documents.

Section VII. Drawings

[Insert here a list of Drawings. The actual Drawings, including site plans, should be attached to this section, or annexed in a separate folder.]

Section VIII. Bill of Quantities

Notes on the Bill of Quantities

Objectives

The objectives of the Bill of Quantities are:

- a. to provide sufficient information on the quantities of Works to be performed to enable Bids to be prepared efficiently and accurately; and
- b. when a Contract has been entered into, to provide a priced Bill of Quantities for use in the periodic valuation of Works executed.

In order to attain these objectives, Works should be itemized in the Bill of Quantities in sufficient detail to distinguish between the different classes of Works, or between Works of the same nature carried out in different locations or in other circumstances which may give rise to different considerations of cost. Consistent with these requirements, the layout and content of the Bill of Quantities should be as simple and brief as possible.

Daywork Schedule

A Daywork Schedule should be included only if the probability of unforeseen work, outside the items included in the Bill of Quantities, is high. To facilitate checking by the Entity of the realism of rates quoted by the Bidders, the Daywork Schedule should normally comprise the following:

- a. A list of the various classes of labor, materials, and Constructional Plant for which basic daywork rates or prices are to be inserted by the Bidder, together with a statement of the conditions under which the Contractor will be paid for work executed on a daywork basis.
- b. Nominal quantities for each item of Daywork, to be priced by each Bidder at Daywork rates as Bid. The rate to be entered by the Bidder against each basic Daywork item should include the Contractor's profit, overheads, supervision, and other charges.

Provisional Sums

A general provision for physical contingencies (quantity overruns) may be made by including a provisional sum in the Summary Bill of Quantities. Similarly, a contingency allowance for possible price increases should be provided as a provisional sum in the Summary Bill of Quantities. The inclusion of such provisional sums often facilitates budgetary approval by avoiding the need to request periodic supplementary approvals as the future need arises. Where such provisional sums or contingency allowances are used, the SCC should state the manner in which they will be used, and under whose authority (usually the Procuring Entity's Representative's).

The estimated cost of specialized work to be carried out, or of special goods to be supplied, by other contractors should be indicated in the relevant part of the Bill of Quantities as a particular provisional sum with an appropriate brief description. A separate procurement procedure is normally carried out by the Procuring Entity to select such specialized contractors. To provide an element of competition among the Bidders in respect of any facilities, amenities, attendance, etc., to be provided by the successful Bidder as prime Contractor for the use and convenience of the specialist contractors, each related provisional sum should be followed by an item in the Bill of Quantities inviting the Bidder to quote a sum for such amenities, facilities, attendance, etc.

Signature Box

A signature box shall be added at the bottom of each page of the Bill of Quantities where the authorized representative of the Bidder shall affix his signature. Failure of the authorized representative to sign each and every page of the Bill of Quantities shall be a cause for rejection of his bid.

These Notes for Preparing a Bill of Quantities are intended only as information for the Procuring Entity or the person drafting the Bidding Documents. They should not be included in the final documents.

Section IX. Checklist of Technical and Financial Documents

Notes on the Checklist of Technical and Financial Documents

The prescribed documents in the checklist are mandatory to be submitted in the Bid, but shall be subject to the following:

- a. GPPB Resolution No. 09-2020 on the efficient procurement measures during a State of Calamity or other similar issuances that shall allow the use of alternate documents in lieu of the mandated requirements; or
- b. any subsequent GPPB issuances adjusting the documentary requirements after the effectivity of the adoption of the PBDs.

The BAC shall be checking the submitted documents of each Bidder against this checklist to ascertain if they are all present, using a non-discretionary “pass/fail” criterion pursuant to Section 30 of the 2016 revised IRR of RA No. 9184.

Checklist of Technical and Financial Documents

I. TECHNICAL COMPONENT ENVELOPE

Class “A” Documents

Legal Documents

- ☐ (a) Valid PhilGEPS Registration Certificate (Platinum Membership) (all pages) in accordance with Section 8.5.2 of the IRR;

Technical Documents

- ☐ (b) Statement of the prospective bidder of all its ongoing government and private contracts, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid; **and**
- ☐ (c) Statement of the bidder’s Single Largest Completed Contract (SLCC) similar to the contract to be bid, except under conditions provided under the rules; **and**
- ☐ (d) Special PCAB License in case of Joint Ventures **and** registration for the type and cost of the contract to be bid; **and**
- ☐ (e) Original copy of Bid Security. If in the form of a Surety Bond, submit also a certification issued by the Insurance Commission **or** original copy of Notarized Bid Securing Declaration; **and**
- ☐ (f) Project Requirements, which shall include the following:
- ☐ a. Organizational chart for the contract to be bid;
 - ☐ b. List of contractor’s key personnel (*e.g.*, Project Manager, Project Engineers, Materials Engineers, and Foremen), to be assigned to the contract to be bid, with their complete qualification and experience data;
 - ☐ c. List of contractor’s major equipment units, which are owned, leased, and/or under purchase agreements, supported by proof of ownership or certification of availability of equipment from the equipment lessor/vendor for the duration of the project, as the case may be; **and**
- ☐ (g) Original duly signed Omnibus Sworn Statement (OSS) **and** if applicable, Original Notarized Secretary’s Certificate in case of a corporation, partnership, or cooperative; or Original Special Power of Attorney of all members of the joint venture giving full power and authority to its officer to sign the OSS and do acts to represent the Bidder.

Financial Documents

- ☐ (h) The prospective bidder’s computation of Net Financial Contracting Capacity (NFCC).

Class “B” Documents

- ☐ (i) If applicable, duly signed joint venture agreement (JVA) in accordance with RA No. 4566 and its IRR in case the joint venture is already in existence **or** duly notarized statements from all the potential joint venture partners stating that they will enter into and abide by the provisions of the JVA in the instance that the bid is successful.

II. FINANCIAL COMPONENT ENVELOPE

- ☐ (j) Original of duly signed and accomplished Financial Bid Form; **and**

Other documentary requirements under RA No. 9184

- ☐ (k) Original of duly signed Bid Prices in the Bill of Quantities; **and**
- ☐ (l) Duly accomplished Detailed Estimates Form, including a summary sheet indicating the unit prices of construction materials, labor rates, and equipment rentals used in coming up with the Bid; **and**
- ☐ (m) Cash Flow by Quarter.

Bid Securing Declaration Form

[shall be submitted with the Bid if bidder opts to provide this form of bid security]

REPUBLIC OF THE PHILIPPINES)
CITY OF _____) S.S.

BID SECURING DECLARATION **Project Identification No.: [Insert number]**

To: *[Insert name and address of the Procuring Entity]*

I/We, the undersigned, declare that:

1. I/We understand that, according to your conditions, bids must be supported by a Bid Security, which may be in the form of a Bid Securing Declaration.
2. I/We accept that: (a) I/we will be automatically disqualified from bidding for any procurement contract with any procuring entity for a period of two (2) years upon receipt of your Blacklisting Order; and, (b) I/we will pay the applicable fine provided under Section 6 of the Guidelines on the Use of Bid Securing Declaration, within fifteen (15) days from receipt of the written demand by the procuring entity for the commission of acts resulting to the enforcement of the bid securing declaration under Sections 23.1(b), 34.2, 40.1 and 69.1, except 69.1(f), of the IRR of RA No. 9184; without prejudice to other legal action the government may undertake.
3. I/We understand that this Bid Securing Declaration shall cease to be valid on the following circumstances:
 - a. Upon expiration of the bid validity period, or any extension thereof pursuant to your request;
 - b. I am/we are declared ineligible or post-disqualified upon receipt of your notice to such effect, and (i) I/we failed to timely file a request for reconsideration or (ii) I/we filed a waiver to avail of said right; and
 - c. I am/we are declared the bidder with the Lowest Calculated Responsive Bid, and I/we have furnished the performance security and signed the Contract.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this ____ day of [month]
[year] at [place of execution].

*[Insert NAME OF BIDDER OR ITS AUTHORIZED
REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant*

[Jurat]

[Format shall be based on the latest Rules on Notarial Practice]

Omnibus Sworn Statement (Revised)

[shall be submitted with the Bid]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

AFFIDAVIT

I, [Name of Affiant], of legal age, [Civil Status], [Nationality], and residing at [Address of Affiant], after having been duly sworn in accordance with law, do hereby depose and state that:

1. *[Select one, delete the other:]*

[If a sole proprietorship:] I am the sole proprietor or authorized representative of [Name of Bidder] with office address at [address of Bidder];

[If a partnership, corporation, cooperative, or joint venture:] I am the duly authorized and designated representative of [Name of Bidder] with office address at [address of Bidder];

2. *[Select one, delete the other:]*

[If a sole proprietorship:] As the owner and sole proprietor, or authorized representative of [Name of Bidder], I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached duly notarized Special Power of Attorney;

[If a partnership, corporation, cooperative, or joint venture:] I am granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached [state title of attached document showing proof of authorization (e.g., duly notarized Secretary's Certificate, Board/Partnership Resolution, or Special Power of Attorney, whichever is applicable)];

3. [Name of Bidder] is not "blacklisted" or barred from bidding by the Government of the Philippines or any of its agencies, offices, corporations, or Local Government Units, foreign government/foreign or international financing institution whose blacklisting rules have been recognized by the Government Procurement Policy Board, **by itself or by relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity as defined and provided for in the Uniform Guidelines on Blacklisting;**

4. Each of the documents submitted in satisfaction of the bidding requirements is an authentic copy of the original, complete, and all statements and information provided therein are true and correct;

5. [Name of Bidder] is authorizing the Head of the Procuring Entity or its duly authorized representative(s) to verify all the documents submitted;

6. *[Select one, delete the rest:]*

[If a sole proprietorship:] The owner or sole proprietor is not related to the Head of the Procuring Entity, Procurement Agent if engaged, members of the Bids and Awards

Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a partnership or cooperative:] None of the officers and members of *[Name of Bidder]* is related to the Head of the Procuring Entity, Procurement Agent if engaged, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a corporation or joint venture:] None of the officers, directors, and controlling stockholders of *[Name of Bidder]* is related to the Head of the Procuring Entity, Procurement Agent if engaged, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

7. *[Name of Bidder]* complies with existing labor laws and standards; and
8. *[Name of Bidder]* is aware of and has undertaken the responsibilities as a Bidder in compliance with the Philippine Bidding Documents, which includes:
 - a. Carefully examining all of the Bidding Documents;
 - b. Acknowledging all conditions, local or otherwise, affecting the implementation of the Contract;
 - c. Making an estimate of the facilities available and needed for the contract to be bid, if any; and
 - d. Inquiring or securing Supplemental/Bid Bulletin(s) issued for the *[Name of the Project]*.
9. *[Name of Bidder]* did not give or pay directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel or representative of the government in relation to any procurement project or activity.
10. **In case advance payment was made or given, failure to perform or deliver any of the obligations and undertakings in the contract shall be sufficient grounds to constitute criminal liability for Swindling (Estafa) or the commission of fraud with unfaithfulness or abuse of confidence through misappropriating or converting any payment received by a person or entity under an obligation involving the duty to deliver certain goods or services, to the prejudice of the public and the government of the Philippines pursuant to Article 315 of Act No. 3815 s. 1930, as amended, or the Revised Penal Code.**

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of ____, 20__ at _____, Philippines.

*[Insert NAME OF BIDDER OR ITS AUTHORIZED
REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant*

[Jurat]
[Format shall be based on the latest Rules on Notarial Practice]

Performance Securing Declaration (Revised)

[if used as an alternative performance security but it is not required to be submitted with the Bid, as it shall be submitted within ten (10) days after receiving the Notice of Award]

REPUBLIC OF THE PHILIPPINES)
CITY OF _____) S.S.

PERFORMANCE SECURING DECLARATION

Invitation to Bid: [Insert Reference Number indicated in the Bidding Documents]

To: [Insert name and address of the Procuring Entity]

I/We, the undersigned, declare that:

1. I/We understand that, according to your conditions, to guarantee the faithful performance by the supplier/distributor/manufacturer/contractor/consultant of its obligations under the Contract, I/we shall submit a Performance Securing Declaration within a maximum period of ten (10) calendar days from the receipt of the Notice of Award prior to the signing of the Contract.
2. I/We accept that: I/we will be automatically disqualified from bidding for any procurement contract with any procuring entity for a period of one (1) year for the first offense, or two (2) years **for the second offense**, upon receipt of your Blacklisting Order if I/We have violated my/our obligations under the Contract;
3. I/We understand that this Performance Securing Declaration shall cease to be valid upon:
 - a. issuance by the Procuring Entity of the Certificate of Final Acceptance, subject to the following conditions:
 - i. Procuring Entity has no claims filed against the contract awardee;
 - ii. It has no claims for labor and materials filed against the contractor; and
 - iii. Other terms of the contract; or
 - b. replacement by the winning bidder of the submitted PSD with a performance security in any of the prescribed forms under Section 39.2 of the 2016 revised IRR of RA No. 9184 as required by the end-user.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this ____ day of [month] [year] at [place of execution].

*[Insert NAME OF BIDDER OR ITS
AUTHORIZED REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant*

[Jurat]

[Format shall be based on the latest Rules on Notarial Practice]

